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SEP 21 2000

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS AND THE DIRECTOR OF THE DIVISION OF REGISTRATIONS
STATE OF COLORADO

Case No. 99.001(C)

ORDER OF SUMMARY SUSPENSION, NOTICE OF DUTY TO ANSWER, NOTICE TO SET AN INFORMAL PREHEARING CONFERENCE, NOTICE OF HEARING, AND NOTICE OF CHARGES

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE PROFESSIONAL COUNSELING AND ALCOHOL AND DRUG ABUSE COUNSELING IN THE STATE OF COLORADO OF THOMAS R. MONROE, Ph.D., LPC, LICENSE NO. 760, CAC III No. 2065

Respondent

TO: Thomas Roy Monroe, Ph.D., LPC, CAC III

ORDER OF SUMMARY SUSPENSION

The State Board of Licensed Professional Counselor Examiners, ("Board") and the State Alcohol and Drug Abuse Counselor Certification Program Director ("Director"), having reviewed all available information as to the matters referenced below, HEREBY FIND:

1. The respondent, Thomas R. Monroe, Ph.D., LPC, CAC III was licensed as a Licensed Professional Counselor in the State of Colorado on or about October 22, 1993. Respondent was licensed to practice professional counseling and practiced professional counseling in the State of Colorado at all times relevant to this matter. Respondent holds professional counselor license number 760.
2. The respondent, R. Monroe, Ph. D., LPC, CAC III was certified as an alcohol and drug abuse counselor in the State of Colorado on or about September 9, 1986. Respondent was certified to practice alcohol and drug abuse counseling and practiced alcohol and drug abuse counseling in the State of Colorado at all times relevant to this matter. Respondent holds CAC III No. 2065

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TO: Thomas Roy Monroe, Ph.D., LPC, CAC III
Case Management Services

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2. The respondent, R. Monroe, Ph. D., LPC, CAC III was certified as an alcohol and drug abuse counselor in the State of Colorado on or about September 9, 1986. Respondent was certified to practice alcohol and drug abuse counseling and practiced alcohol and drug abuse counseling in the State of Colorado at all times relevant to this matter. Respondent holds CAC III No. 2065

3. The Board and Director have jurisdiction over respondent and the subject matter herein.

4. The Board reviewed information regarding respondent's practice of professional counseling and alcohol and drug abuse counseling. Based on this information which is detailed in the attached Notice of Charges, reasonable grounds exist to believe, and the Board and Director find, that the public health, safety, and welfare imperatively require that emergency action be taken to prevent respondent from practicing professional counseling and alcohol and drug abuse counseling in the State of Colorado.

THEREFORE, IT IS HEREBY ORDERED that the license of Thomas R. Monroe, Ph.D., LPC, CAC III to practice professional counseling and alcohol and drug abuse counseling in the state of Colorado be and hereby is summarily suspended until such time as he has completed a mental examination ordered by the Board and Director in accordance with C.R.S. § § 12-43-224(2)(d) and (e), and § 24-4-104(4).

DATED this 21st day of September, 2000.


AMOS D. MARTINEZ
Program Administrator
Board of Psychologist Examiners and
Alcohol and Drug Abuse Counselor
Program

NOTICE OF DUTY TO ANSWER

YOU ARE HEREBY NOTIFIED that, pursuant to C.R.S. § 24-4-105(2)(b), you are required to file a written answer to the attached Notice of Charges with the Division of Administrative Hearings, 1120 Lincoln Street, Suite 1400, Denver, Colorado 80203, within thirty (30) days after the mailing of this Notice of Duty to Answer, Notice to Set, Notice of Hearing and Notice of Charges. You must also mail a copy of such answer to the attorney who has signed this Notice of Duty to Answer, Notice to Set, Notice of Hearing and Notice of Charges below.

If you fail to file your written answer within the applicable time period, an order entering a default decision may be issued against your psychologists license for the relief requested in the Notice of Charges, or such other penalties which may be provided for by law, without further notice to you.

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4. The Board reviewed information regarding respondent's practice of professional counseling and alcohol and drug abuse counseling. Based on this information which is detailed in the attached Notice of Charges, reasonable grounds exist to believe, and the Board and Director find, that the public health, safety, and welfare imperatively require that emergency action be taken to prevent respondent from practicing professional counseling and alcohol and drug abuse counseling in the State of Colorado.

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NOTICE TO SET AN INFORMAL PREHEARING CONFERENCE

YOU ARE HEREBY NOTIFIED that counsel for petitioner, will appear at 9:00 a.m. on Friday, October 13, 2000, in the Office of the Division of Administrative Hearings, 1120 Lincoln Street, Ste. 1400, Denver, Colorado 80203, in order to set a date, time, and location for an informal prehearing conference regarding the following Notice of Charges. AT the informal prehearing conference the parties will set a hearing date, determine an expedited discovery schedule and obtain motion dates and prehearing conference dates as necessary. You may be present in person or by counsel or you may make prior arrangements to be reached by telephone at the time and date specified above, by contacting the undersigned attorney prior to the day of setting.

NOTICE OF HEARING

YOU ARE HEREBY NOTIFIED that pursuant to C.R.S. § § 12-43-224 and 24-4-104 and 105, that a hearing will be held before an authorized Administrative Law Judge at a time and location to be determined at the informal prehearing conference, for the purpose of determining whether the license to practice professional counseling and alcohol and drug abuse counseling in Colorado of Thomas R. Monroe, Ph.D., LPC, CAC III should remain suspended and other lawful discipline imposed on his practice of professional counseling and alcohol and drug abuse counseling for a violation C.R.S. § 12-43-224(2)(d) and 12-43-222(i)(b).

YOU ARE FURTHER NOTIFIED that at the hearing in this matter you shall have the right to appear in person and/or by legal counsel; to present evidence in your own behalf; to cross-examine any witnesses presented by the petitioner; and to rebut any evidence presented by the petitioner. You may also have subpoenas issued on your behalf upon request to the Administrative Law Judge.

NOTICE OF CHARGES

Petitioner charges and alleges as follows:

1. Thomas R. Monroe, Ph.D., LPC, CAC III ("respondent") was licensed as a Professional Counselor in the state of Colorado on October 22, 1993. Respondent practiced professional counseling at all times relevant herein. He holds professional counseling license 760.
2. The respondent, R. Monroe, Ph.D., LPC, CAC III was certified as an alcohol and drug abuse counselor in the State of Colorado on or about September 9, 1986. Respondent was certified to practice alcohol drug abuse counseling at all times relevant herein. Respondent holds CAC III No. 2065

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2. The respondent, R. Monroe, Ph.D., LPC, CAC III was certified as an alcohol and drug abuse counselor in the State of Colorado on or about September 9, 1986. Respondent was certified to practice alcohol drug abuse counseling at all times relevant herein. Respondent holds CAC III No. 2065

3. The State Board of Licensed Professional Counselor Examiners ("Board") and the State Alcohol and Drug Abuse Counselor Certification Program Director ("Director") have jurisdiction over the person of respondent and the subject matter of this Notice of Charges.

4. The Board and Director ordered that respondent submit to a mental examination (the "examination") pursuant to 12-43-224(2)(d) on or about March 17, 2000.

5. Respondent was initially informed of this order and directed to submit to examination with José Vega, Ph.D., in a letter dated March 23, 2000. Based on respondents failure to respond to the Board and Director ordered examination, subsequent letters were sent on April 14, 2000 and April 24, 2000, further directing respondent to submit to an examination with Dr. Vega.

6. These letters fully advised respondent that pursuant to the express terms of C.R.S. § 12-43-224(2)(d) and (e) he was required to submit to the examination. Respondent was also advised that his refusal to submit to the examination would result in the summary suspension of his professional counselor license and CAC III certification.

7. In a letter dated, May 2, 2000 respondent requested that a different mental health provider conduct the examination as respondent felt he might have a conflict with Dr. Vega.

8. In the above-mentioned letter, respondent admits that he is statutorily required to submit to the examination.

9. In a letter dated May 10, 2000, the Board and Director agreed to respondent's request and selected a different evaluator to perform the examination. Respondent was then directed to submit to an examination by Kristin Scales, Psy. D.

10. On or about July 18, 2000, Dr. Scales informed the Board and Director that she scheduled three evaluation sessions with respondent to begin on July 12, 2000.

11. On or about July 21, 2000, the Board and Director reviewed a letter sent by Dr. Scales indicating that respondent failed to attend any of the scheduled sessions.

12. The Board and Director reviewed Dr. Scales letter and directed respondent to schedule an appointment with Dr. Scales no later than August 15, 2000.

13. On or about August 15, 2000 respondent scheduled an examination appointment with Dr. Scales for September 6, 2000.

14. Respondent failed to attend the appointment with Dr. Scales on September 6, 2000.

3. The State Board of Licensed Professional Counselor Examiners ("Board") and the State Alcohol and Drug Abuse Counselor Certification Program Director ("Director") have jurisdiction over the person of respondent and the subject matter of this Notice of Charges.

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12. The Board and Director reviewed Dr. Scales letter and directed respondent to schedule an appointment with Dr. Scales no later than August 15, 2000.

13. On or about August 15, 2000 respondent scheduled an examination appointment with Dr. Scales for September 6, 2000.

14. Respondent failed to attend the appointment with Dr. Scales on September 6, 2000.

15. Respondent has failed to show good cause for his failure to submit to the examination.

16. Respondent's failure to submit to the Board and Director ordered examination is a violation of C.R.S. § 12-43-224(d) and 12-43-222(1)(b)

17. Pursuant to C.R.S. § 12-43-224 the Board and Director may summarily suspend respondent's license until such time as respondent submits to the required examination.

WHEREFORE, petitioner prays that the respondent's license to practice professional counseling and CAC III certification remain suspended, until such time as the required mental examination is completed and such other relief as may be just and proper.

DATED this ____ day of September 2000.


JENNIFER H. HINES, 29323*
Assistant Attorney General
Business and Licensing Section

Attorney for State Board of Licensed Professional
Counselor Examiners and State Alcohol and Drug
Abuse Counselor Certification Program

1525 Sherman Street, 5th Floor
Denver, Colorado 80203
Telephone: (303) 866-5273
FAX: (303) 866-5691
*Counsel of Record

15. Respondent has failed to show good cause for his failure to submit to the examination.

16. Respondent's failure to submit to the Board and Director ordered examination is a violation of C.R.S. § 12-43-224(d) and 12-43-222(l)(b)

17. Pursuant to C.R.S. § 12-43-224 the Board and Director may summarily suspend respondent's license until such time as respondent submits to the required examination.

WHEREFORE, petitioner prays that the respondent's license to practice professional counseling and CAC III certification remain suspended, until such time as the required mental examination is completed and such other relief as may be just and proper.

DATED this ____ day of September 2000.



JENNIFER H. HINES, 29323*
Assistant Attorney General
Business and Licensing Section

Attorney for State Board of Licensed Professional
Counselor Examiners and State Alcohol and Drug
Abuse Counselor Certification Program

1525 Sherman Street, 5th Floor
Denver, Colorado 80203
Telephone: (303) 866-5273
FAX: (303) 866-5691
*Counsel of Record

HINES

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS AND THE DIRECTOR OF THE DIVISION OF REGISTRATIONS
STATE OF COLORADO

CASE NO. PY 2000-08

ORDER OF DISMISSAL

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE
TO PRACTICE PROFESSIONAL COUNSELING AND ALCOHOL AND DRUG ABUSE
COUNSELING IN THE STATE OF COLORADO OF THOMAS R. MONROE, Ph.D,
LPC, LICENSE No. 760, CAC No. 2065,

Respondent.

This matter was scheduled for hearing on September 6, 2001. On September 5, 2001, Respondent filed a Motion to Dismiss Hearing, in which he requests that the hearing on the merits be dismissed. Respondent acknowledges that his license to practice professional counseling and alcohol and drug abuse counseling is currently suspended due to his refusal to take a Board-ordered mental examination. He further agrees that this suspension will remain in effect.

Accordingly, the hearing scheduled in this matter for September 6, 2001, is vacated and this matter is dismissed in its entirety.

DONE AND SIGNED September 6, 2001

Nancy Connick
NANCY CONNICK
Administrative Law Judge

CERTIFICATE OF SERVICE

I certify that a true and correct copy of the above ORDER OF DISMISSAL was placed in the U.S. Mail, postage prepaid, at Denver, Colorado to:

Thomas F. Hassan, Esq
4100 E. Mississippi Ave., #802
Denver, CO 80246

and by courier pickup on, Jennifer H. Hines, Assistant Attorney General, Business and Licensing Section, 1525 Sherman Street, 5th Floor, Denver, CO 80203, on September 7th 2001.



Secretary to Administrative Law Judge